

The SAC also alleges that “[o]n or about September 9, 2020, Steve Lichti, functioning as a finance director for Alsan and Norsan, redirected Jointly Held Entities shareholder distributions in the amount of \$3,320,875 from DTS to Norsan, and increased the Norsan ‘Loan’ by that amount.” (SAC at ¶ 33.)

In each case, the elements of conversion were complete in 2018 and 2020, respectively, Plaintiffs allegation that “those damages occurred when Norsan revealed in July 2024 that it was defaulting on the Norsan ‘Loan’” (SAC at ¶ 59) is inconsistent with the case law on conversion. “Ordinarily the statute of limitations applying in conversion actions (Code Civ. Proc. § 388, subd. 3 [now subdivision (c)]) begins to run from the date of the conversion even though the injured person is ignorant of his rights.” (*Strasberg v. Odyssey Group* (1996) 51 Cal.App.4th 906, 916 [citations omitted].) However, where there has been fraudulent concealment of the facts the statute of limitations does not commence to run until the aggrieved party discovers or ought to have discovered the existence of the cause of action for conversion. (*Id.*)

The doctrine of fraudulent concealment requires Plaintiffs allege supporting facts—i.e. the date of discovery, the manner of discovery, and the justification for the failure to discover the fraud earlier—with the same particularity as with a cause of action for fraud. (See *Community Cause v. Boatwright* (1981) 124 Cal.App.3d 888, 900-902 [applied to a fraudulent concealment cause of action].) To take advantage of this doctrine “ ‘the plaintiff must show ... the substantive elements of fraud ... and ... an excuse for late discovery of the facts.’ ” (*Snapp & Associates Ins. Services, Inc. v. Robertson* (2002) 96 Cal.App.4th 884, 890.)

Plaintiffs argue in opposition that they have sufficiently alleged fraudulent concealment. Specifically, that the date and manner of discovery was July 2024 when Norsan failed to respond to David’s formal demand letter for repayment. (Opp. at 12:14-22 [citing SAC ¶¶ 42, 44].) They further argue that their justification for failure to discover the fraud earlier was “Norsan’s years-long course of conduct” including sending Plaintiff David T. Seeno “monthly amortization schedules documenting the debt and its terms, apparently prepared by its corporate controller, Kim Penitenti.” (*Id.* at 12:24-27 [citing SAC at ¶¶ 24-27].)

Plaintiffs’ fraudulent concealment theory depends on a characterization of the 2018 and 2020 conversions as loans of which Plaintiff David T. Seeno was ignorant of until he “assumed control and management of his financial records in April 2020 through at least February 2023.” (SAC at ¶ 28.) However, the SAC’s characterization of the transaction as a “unilateral” decision by Norsan “to treat the \$4,236,790 overpayment as a loan” (SAC at ¶ 20) (which was later increased by the September 9, 2020 transfer an additional \$3,320,875 (SAC at ¶ 33)) is inconstant with basic principles of contract formation. (See *Weddington Productions, Inc. v. Flick* (1998) 60 Cal.App.4th 793, 811 [“An essential element of any contract is ‘consent.’ The ‘consent’ must be ‘mutual.’ Consent is not mutual unless the parties all agree upon the same thing in the same sense.”] [internal citations omitted].) As a consequence, while these allegations support fraudulent concealment, they cannot also state a claim for breach of contract.

Therefore, Plaintiff has failed to allege facts sufficient to state a claim for breach of contract. The demurrer to that cause of action is **SUSTAINED**, without leave to amend. However, the Second Amended Complaint adequately alleges fraudulent concealment. Consequently, the demurrer on the grounds that Plaintiff’s claims are barred by their respective statutes of limitations is **OVERRULED**.

9. 9:00 AM CASE NUMBER: C24-01921

CASE NAME: A-S PIPELINES INC., A CALIFORNIA CORPORATION VS. GOLD COAST PIPELINES, INC. A CALIFORNIA CORPORATION

*HEARING ON MOTION IN RE: SEAL

FILED BY: DAVID T. SEENO

TENTATIVE RULING:

The hearing is ordered **OFF-CALENDAR**, as this motion to seal was granted by stipulation of the parties and the Court's Order signed July 23, 2026.

10. 9:00 AM CASE NUMBER: C25-00070

CASE NAME: GARO KEADJIAN VS. ALICA PURCELL

HEARING ON SUMMARY MOTION MSJ

FILED BY: PRZYLUSKA, GINA

TENTATIVE RULING:

WITHDRAWN by Notice of Withdrawal filed July 21, 2026.

11. 9:00 AM CASE NUMBER: C25-02482

CASE NAME: ALISE MALIKYAR VS. MICHELE BARBARA

*HEARING ON MOTION IN RE: DISQUALIFY COUNSEL MOTION FILED

FILED BY:

TENTATIVE RULING:

On November 12, 2025, defendant Robert Jacobsen ("Defendant Jacobsen") filed a motion order disqualifying Geoffrey Wm. Steele ("Mr. Steele") and the Steele Law Group, Inc. (collectively, "Plaintiffs' Counsel") from serving as counsel for plaintiffs herein (the "Motion to Disqualify Counsel"). The Motion to Disqualify Counsel was set for hearing on June 8, 2026 pursuant to the Court's Order issued January 29, 2026.

The matter was called for hearing on June 8, 2026. See Minute Order dated June 9, 2026. The Court heard initial arguments and directed that the parties submit further hearing, in particular to address the impact of a referenced prior court ruling which the opposing party argued had disposed of the disqualification issue and/or should inform the Court's ruling on the pending motion. Further Opposition was to be filed by July 6, 2026 and any further Reply by July 20, 2026. The parties were admonished that the further briefing should be limited to five (5) pages.

Notwithstanding the continuance and the Court's direction, no further papers appear to have been filed by any party.

Background

Defendant Jacobsen contends that Mr. Steele received confidential information material to this dispute and his continued representation of plaintiffs creates an impermissible